

Department of Natural Resources

Division of Reclamation, Mining and Safety

MINE SAFETY AND TRAINING PROGRAM FOR TOURIST MINES

2 CCR 407-6

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

RULES AND REGULATIONS OF THE MINE SAFETY AND TRAINING PROGRAM PURSUANT TO 34-21-110 C.R.S.

Materials cited in these rules are hereby incorporated by reference. The materials incorporated in these rules by reference do not include later amendments to or editions of the incorporated materials. All materials incorporated by reference are available for inspection at State Publications Depository Libraries, through inter-library loan, and at the MSTP office located in Room 215, Centennial Building, 1313 Sherman Street, Denver, Colorado 80203. The MSTP Supervisor can provide further information regarding how the incorporated material may be obtained or examined.

These Rules are proposed in accordance with Title 34, Article 21 Sections 104 and 110 of the Colorado Revised Statutes, and establish procedures through which the Mine Safety and Training Program of the Colorado Division of Reclamation, Mining and Safety will implement the statutes. A written statement of the basis and purpose of these Rules has been prepared and adopted by the Director of the Division of Reclamation, Mining and Safety, and is hereby incorporated in these Rules by reference pursuant to C.R.S., 24-7-103(4).

RULE 1: DEFINITIONS

1. "Approved" means tested and accepted for a specific purpose by a nationally recognized Agency.
2. "Combustible" means capable of being ignited and consumed by fire.
3. "Competent Person" means a person having abilities and experience to qualify them to perform the duty in which they assigned.
4. "Conveyance" means hoisting and lowering mechanisms equipped with a car or platform carry persons between two or more landings
5. "Employee" means a person who works for wages or salary in the service of an employer.

6. "Escapeway" means a passageway by which a person may leave a mine. Escapeways are conspicuously marked with directional signage reading "EXIT" and unobstructed by tools, extraneous materials, or equipment.
7. "Explosive" means any substance classified as an explosive by the Department of the Treasury, Bureau of Alcohol, Tobacco, and Firearms, 27 CFR Part 55 Subpart B Definitions, as amended April 1, 2000, which is hereby incorporated by reference.
8. "Hazard" means a condition or situation that has the potential to cause injury or loss.
9. "Insulated" means separated from other conducting surfaces by a dielectric substance permanently offering a high resistance to the passage of current and to disruptive discharge through the substance.
10. "Mine" means all lands on which minerals have been extracted, including excavations, underground passageways, shafts, tunnels and workings, structures, facilities, equipment machines or other property.
11. "MSTP" means the Mine Safety and Training Program of the Office of Active and Inactive Mines of the Colorado Division of Reclamation, Mining and Safety.
12. "MSTP Supervisor" means the Mine Safety and Training Program Supervisor of the Office of Active and Inactive Mines of the Division of Reclamation, Mining and Safety.
13. "Multipurpose Dry-chemical Fire Extinguisher" means a listed or Approved Multipurpose Dry-chemical Fire Extinguisher having a minimum rating of a 2-A:10- B:C, by Underwriters Laboratories, Inc., and containing a minimum of 4.5 pounds of dry-chemical agent.
14. "Safety Can" means an Approved container, of not over 5 gallons capacity, having a spring-closing lid and spout cover.
15. "Scaling" means removal of insecure materials from a back, rib, face, or highwall.
16. "Tourist" means a person visiting a Tourist Mine for recreational purposes.
17. "Tourist Mine" means any nonproducing mine not regulated by the federal government that is open to the general public for tours.
18. "Tourist Mine Owner/Operator" means a person or entity that owns or operates a Tourist Mine.
19. "Working Place" means any place in or about a mine where work is performed.

RULE 2: GENERAL REQUIREMENTS

1. The Tourist Mine Owner/Operator shall conduct their operation with due regard to health and safety. A Tourist Mine Owner/Operator shall provide or use safety devices and safeguards that are reasonably necessary to protect the health and safety of their Employees.
2. A daily inspection of the Tourist Mine by a Competent Person designated by the Tourist Mine Owner/Operator is required. Any Hazard that may adversely affect the health and safety of any person must be noted and corrective action taken. A record of each inspection shall be completed, dated, and signed no later than the end of the shift or business day for which the examination was conducted and shall be maintained for a period of three years and available for the inspector to examine at the Tourist Mine for current and immediately preceding years. Any inspection checklist must include, but not be limited to the following:
 - a. Proper ventilation and oxygen levels (Ventilation Section, Rule 6);
 - b. Ground conditions and control;
 - c. Electrical Hazards;
 - d. Mine conveyance equipment;
 - e. Communication system;
 - f. General mine Hazards
 - g. Mine maps (extents of tour and escape routes);
 - h. Documentation of annual safety training for Employees;
 - i. Daily examination records;
 - j. Fire suppression equipment; and
 - k. Approved emergency and evacuation procedures.
3. Each Tourist shall be informed regarding the proper conduct and procedures to follow. Prior to commencement of the tour, safety awareness training must be conducted to adequately inform Tourists of the Hazards they may encounter while on the tour.
4. Tourist Mine Employees are required to receive annual safety training specific to the Tourist Mine site on applicable portions of these Tourist Mine rules. The Tourist Mine Owner/Operator shall maintain records of training for a period of three years. The MSTP staff will provide a general annual assistance training session for any Tourist Mine Owner/Operator or their Employees. The Tourist

Mine Owner/Operator will be notified of the date and location of the training. The purpose of the MSTP training is to provide guidance for the Tourist Mine Owner/Operator to more effectively provide the training for their Employees at the mine site, and so their Employees can more effectively carry out their required duties as outlined in these rules. The Tourist Mine Owner/Operator may also request an inspector to assist with the training at the mine site during a scheduled visit. Verification of the Employees annual safety training must be maintained at the Tourist Mine. Training records must be available upon request in written or digital format to the MSTP Supervisor or their representative.

5. No self-guided tours will be allowed unless approved by the MSTP Supervisor or their representative. A formal written request must be submitted to MSTP for review and approval.
6. A reasonable supply of tools and supplies must be maintained at the Tourist Mine site to be available for correcting unsafe conditions if encountered.
7. Access to unattended surface mine openings shall be restricted by lockable gates or doors.
8. Each Tourist Mine Owner/Operator will establish a check in and checkout system for every Employee or volunteer which will provide an accurate record of persons in the Tourist Mine. Tourists must be accounted for at all times by the Tourist Mine Owner/Operator guide.
9. All displays must be located in an area that is free from any hazardous condition, so that the health and safety of any Employee will not be jeopardized if they are required to maintain the display.
10. By April 1 of each year, the Tourist Mine Owner/Operator shall submit to the MSTP a preseason report, including a plan map indicating any changes from the previous year's area map, and describing any changes in Tourist routes or any other changes in operating conditions such as new or modified escape routes, mine ventilation, or barricaded areas. The following information must also be submitted in the preseason report unless it has already been submitted to the MSTP. Any changes in the following requested information from the prior year shall be noted in the preseason report.
 - a. The address and phone number of the general office and the local address and phone number of the Tourist Mine Owner/Operator;
 - b. The name(s) of the person designated by the Tourist Mine Owner/Operator as the Tourist Mine representative;
 - c. The name(s) of the owner(s) of the surface and subsurface land rights on which the Tourist Mine is located;

- d. A statement that the operations will be conducted in accordance with these Rules;
 - e. A current map (plan view) of the Tourist Mine workings which includes all areas of the mine where Tourists or Employees may be exposed to mine Hazards, and depicts the locations of all first aid and emergency equipment, locations of primary and secondary (if applicable) escape routes, locations of communication systems, personal protective equipment, power switches for electrical equipment including, but not limited to lights, fans, general mining supplies;
 - f. A current emergency procedure plan (see Rule 9); and
 - g. An indication whether the Tourist Mine uses Explosives, and if so, how and when such Explosives are used.
 - h. If the tourist mine conducts prospecting or exploration activities or maintains an approved exploration or prospecting permit, a description of how the prospecting or exploration operations do not materially impact the safety of the Tourist Mine operation or these Regulations shall be submitted to the MSTP for review.
11. It shall be the duty of the Tourist Mine Owner/Operator to keep the MSTP notified of any mailing address change by promptly sending a written notice of such change to the MSTP. In the absence of such notice, the MSTP will use the last previous address provided by the Tourist Mine Owner/Operator.
12. Where a Tourist Mine Owner/Operator official business name changes or there is a change in ownership or status, the Tourist Mine Owner/Operator shall inform the MSTP in writing within 30 days of such change, including previous and new names of the business, previous and new ownership and operator status, and any new addresses and telephone numbers associated with such changes.
13. Prior to instituting any significant change(s) in the operation or condition(s) of a Tourist Mine which may deviate from the submitted preseason report outlined in Rule 2.10, the Tourist Mine Owner/Operator must submit a plan for approval within 30 days to notify the MSTP of such change(s).
14. Where a Tourist Mine Owner/Operator files a petition for bankruptcy, the Tourist Mine Owner/Operator shall immediately notify the MSTP via certified mail of such filing.

RULE 3: INSPECTION GUIDELINES

1. The MSTP Supervisor or their representative may at any time during reasonable business hours enter, examine and inspect any active areas of a Tourist Mine, any connected plant or equipment, or any part of the workings of a Tourist Mine that may affect the active areas.
2. The Tourist Mine Owner/Operator or designated representative may accompany the MSTP Supervisor or their representative while conducting inspections.

RULE 4: GROUND CONTROL

1. Ground conditions that create a Hazard to a person shall be taken down or supported before other work or travel is permitted in the affected area. Until corrective work is completed, the area shall be posted with a warning against entry and, when left unattended, a barrier shall be installed to impede unauthorized entry.
2. Scaling shall be performed from a location which will not expose persons to injury from falling material, or other protection from falling materials shall be provided.
3. Where manual Scaling is performed, a scaling bar shall be provided. This bar shall be of a length and design that will allow removal of loose materials without exposing the person performing the work to injury.
4. Rock bolts and accessories used for ground support must be in compliance with American Society for Testing Materials Publication F432-95, as amended 2001, which is hereby incorporated by reference and must be installed according to manufacturer recommendations.
5. When ground support is necessary, the support system shall be designed, installed, and maintained to control the ground in places where persons work or travel in performing their assigned tasks. Damaged, loosened, or dislodged timber or any other device used for ground support which creates a Hazard to any person shall be repaired or replaced prior to any work or travel in the affected area.

RULE 5: VENTILATION

1. Air in all active workings and all other areas of the Tourist Mine where people are required to work or travel shall contain at least 19.5% volume percent oxygen. To ensure real-time 19.5% volume percent oxygen is maintained, a test will be taken with a calibrated electronic oxygen meter. In addition to the electronic oxygen meter, a chemical analysis may be used as a backup measuring device.
2. All underground main fans shall have controls placed at a suitable and protected location, remote from the fan and preferably on the surface.

3. When auxiliary fan systems are used, such systems shall minimize recirculation and be maintained to provide ventilation air that effectively sweeps the affected area.
4. Unventilated areas shall be sealed or barricaded and posted against entry.
5. Unless an Approved method of detecting hydrogen gas is available, all battery charging stations will either be located on the surface or will be ventilated directly to the surface with a sufficient volume of air to prevent the accumulation of hydrogen gas.

RULE 6: FIRE PREVENTION AND CONTROL

1. Fires shall not be lit underground, except for open-flame torches. While lit, torches shall be accompanied by the necessary fire control equipment.
 - a. When welding, cutting, soldering, thawing, or bending with an electric arc or with an open flame where an electrically conductive extinguishing agent could create an electrical Hazard, a Multipurpose Dry-chemical Fire Extinguisher or other extinguisher with at least a 2-A:10-B:C rating shall be at the worksite.
 - b. When welding, cutting, soldering, thawing, or bending with an open flame in an area where no electrical Hazard exists, a Multipurpose Dry-chemical Fire Extinguisher or equivalent fire extinguishing equipment for the present fire hazard class shall be at the worksite.
 - c. Use of halogenated fire extinguishing agents to meet the requirements of this standard shall be limited to Halon 1211 (CBrClF2) and Halon 1301 (CBrF3). When these agents are used in confined or unventilated areas, precautions based on the manufacturer's use instructions shall be taken so that the gases produced by thermal decomposition of the agents are not inhaled.
2. For fighting fire that could endanger a person, each Tourist Mine shall have:
 - a. Onsite firefighting equipment for fighting fires in their early stages; and
 - b. Onsite firefighting equipment for fighting fires beyond their early stages or prior arrangements with a local fire department to fight such fires.
3. This onsite firefighting equipment shall be:
 - a. Of the type, size, and quantity that can extinguish fires of any class which occur as a result of the hazards present; and
 - b. Strategically located, readily accessible, plainly marked, and maintained in fire ready condition.

4. Firefighting equipment shall be inspected according to the following schedules. The Tourist Mine Owner/Operator shall maintain and provide documentation of dates of the inspection and when required testing was conducted.
 - a. Fire extinguishers shall be inspected visually at least once a month to determine that they are fully charged and operable.
 - b. At least once every twelve months, maintenance checks shall be made of mechanical parts, the amount and condition of extinguishing agent and expellant, and the condition of the hose, nozzle, and vessel to determine that the fire extinguishers will operate effectively.
 - c. Fire extinguishers shall be hydrostatically tested according to a schedule based on the manufacturer's specifications to determine the integrity of extinguishing agent vessel.
 - d. Water pipes, valves, outlets, hydrants, and hoses that are part of the Tourist Mine's firefighting system shall be visually inspected at least once every three months for damage or deterioration and use-tested at least once every twelve months to determine that they remain functional.
5. Fire extinguishers shall be recharged or replaced with a fully charged extinguisher promptly after any discharge.
6. Whenever self-propelled equipment is used underground, a fire extinguisher shall be on the equipment. Fire extinguishers shall be of a type and size that can extinguish fires of any class in their early stages which could originate for the equipment's potential fire hazards. This standard does not apply to pneumatic or compressed air powered mobile equipment that does not pose a fire Hazard.
7. Transformer stations, storage and dispensing areas for Combustible liquids, pump rooms, and hoist rooms shall be provided with fire protection of a type, size, and quantity that can extinguish fires of any class in their early stages which could occur as a result of the hazards present.
8. Combustible liquids stored underground, including oil and grease, shall be stored in non-glass containers or storage tanks. The containers or storage tanks shall be:
 - a. Capable of withstanding working pressures and stresses and compatible with the type of liquid stored;
 - b. Maintained in a manner that prevents leakage;
 - c. Located in underground areas free of Combustible materials or in underground areas where any exposed Combustible materials are coated

- with one inch of shotcrete, one-half inch of gunite, or other non-Combustible material with equivalent fire protection characteristics; and
- d. Separated from Explosives or blasting agents, shaft stations, and ignition sources including electric equipment that could create sufficient heat or sparks to pose a fire Hazard. Separation shall be sufficient to prevent the occurrence or minimize the spread of fire.
- 9. Underground storage tanks shall be vented or otherwise constructed to prevent development of pressure or vacuum as a result of filling, emptying, or atmospheric temperature changes. Vents for storage of Class II or IIIA liquids shall be isolated or separated from ignition sources.
 - 10. At underground permanent storage areas for Combustible liquids, means shall be provided for confinement or removal of the contents of the largest storage tank in the event of tank rupture.
 - 11. All underground piping, valves, and fittings shall be:
 - a. Capable of withstanding working pressures and stresses;
 - b. Compatible with the type of liquid stored; and
 - c. Maintained in a manner which prevents leakage.
 - 12. Surface area storage tanks for flammable or Combustible liquids shall be:
 - a. Capable of withstanding working pressures and stresses;
 - b. Compatible with the type of liquid stored;
 - c. Maintained in a manner which prevents leakage;
 - d. Isolated or separated from ignition sources to prevent fire or explosion; and
 - e. Vented or otherwise constructed to prevent development of pressure or vacuum as a result of filling, emptying, or atmospheric temperature changes. Vents for storage of Class I, II, or IIIA liquids shall be isolated or separated from ignition sources. These pressure relief requirements do not apply to tanks used for storage of Class IIIB liquids that are larger than 12,000 gallons in capacity.
 - 13. All surface area piping, valves, and fittings shall be:
 - a. Capable of withstanding working pressures and stresses;
 - b. Compatible with the type of liquid stored; and

- c. Maintained in a manner which prevents leakage.
- 14. Fixed, unburied tanks within the surface area shall be located where escaping liquid could present a Hazard to any person shall be provided with:
 - a. Containment for the entire capacity of the largest tank; or
 - b. Drainage to a remote impoundment area that does not endanger persons. However, storage of only Class IIIB liquids does not require containment or drainage to remote impoundment.
- 15. Small quantities of flammable liquids drawn from surface area storage shall be kept in Safety Cans and labeled with the common or product name to indicate the contents. These flammable liquids shall be stored in designated flammable liquid storage areas when not in use.
- 16. Any new surface buildings or other similar structures constructed within 100 feet of mine openings used for intake air or within 100 feet of mine openings that are designated Escapeways in exhaust air shall be:
 - a. Constructed of non-Combustible materials;
 - b. Constructed to meet a fire resistance rating of no less than one hour;
 - c. Provided with an automatic fire suppression system; or
 - d. Covered on all Combustible interior and exterior structural surfaces with non-Combustible material or limited Combustible material, such as five-eighth inch Type "X" gypsum wallboard.
- 17. Any new mine entrances at least 200 feet inside the mine portal or collar timber used for ground support in intake openings and in exhaust openings that are designated as Escapeways shall be:
 - a. Provided with a fire suppression system, other than fire extinguishers and water hoses, capable of controlling a fire in its early stages;
 - b. Covered with shotcrete, gunite, or other material with equivalent fire protection characteristics; or
 - c. Coated with fire-retardant paint or other material to reduce its flame spread rating to 25 or less and maintained in that condition.
- 18. Compressed gas cylinders shall not be stored in rooms or areas used or designated for storage of flammable or Combustible liquids, including grease. Gauges and regulators used with oxygen or acetylene cylinders shall be kept clean and free of oil and grease. Compressed gas cylinders shall be secure to prevent falling, tipping or coming in contact with Tourists.

19. Battery charging stations will not be located at or near a potential electrical arcing source.

RULE 7: EXPLOSIVES

1. Explosives shall be stored and handled in accordance with applicable state and federal laws.
2. Use and handling of Explosives shall be prohibited during normal tour hours.
3. Portable magazines containing Explosives shall not be located at or near the tour route and permanent magazines must remain locked during normal tour hours.

RULE 8: EMERGENCY AND EVACUATION PROCEDURES

1. An emergency procedure plan shall be in place for events that can reasonably be expected to occur at the Tourist Mine. The plan will be incorporated with the preseason report and submitted to the MSTP Supervisor for their approval by April 1 of each year. The plan shall include but not be limited to the following key concerns:
 - a. Fires;
 - b. Roof or ground falls;
 - c. Water inundation;
 - d. Explosions;
 - e. Availability of emergency communication and transportation facilities;
 - f. Emergency power and ventilation;
 - g. Instructions showing how to evacuate all areas of the mine;
 - h. Location of rescue personnel and equipment; and
 - i. Emergency Medical Service (EMS) procedures and notifications of proper authorities to include the MSTP Supervisor.
2. A map or diagram of the Tourist Mine will be posted and maintained at or near the Tourist Mine entrance and at the end of tour areas underground (farthest point of tour traveled). The map or diagram will show the normal direction of principle airflow, location of escape routes, location of existing telephones, and locations of refuge chambers, if they exist.

3. Escape routes shall be marked with conspicuous and easily read direction signs that clearly indicate the ways of escape routes in the event of an emergency underground and in structures or buildings on the surface.
4. At least once every twelve months, all persons who work underground shall be instructed in the escape and evacuation plans and procedures and fire warning signals in effect at the Tourist Mine. Such training shall be documented and maintained for a period of three years. Such records shall be made available for inspection by the MSTP Supervisor or their representative. Whenever a change is made in escape and evacuation plans and procedures for any area of the mine, all persons affected shall be instructed in the new plans or procedures.
5. The Tourist Mine Owner/Operator shall notify the MSTP as soon as reasonably practicable, but not later than thirty (30) minutes after the Tourist Mine Owner/Operator has knowledge of any emergency situation that seriously endangers the health and safety of the public or the Employees at the Tourist Mine.
6. Prior to beginning any tour, Tourists shall be given a summary orientation or tutorial on mine emergency evacuation procedures and what to do in the event the tour guide is incapacitated or otherwise absent during an emergency.

RULE 9: EQUIPMENT AND MACHINERY REQUIREMENTS

1. All haulage equipment including mantrips shall be maintained to meet or exceed the original manufacturer's safety standards with special attention paid to braking systems (primary and secondary), fire suppression systems, electrical systems, guards, and other safety devices.
2. Mobile equipment to be used during a shift shall be inspected by the equipment operator before being placed in operation on that shift. Defects on any equipment, machinery or tools that affect safety shall be corrected in a timely manner. Defects on self-propelled mobile equipment affecting safety, which are not corrected immediately, shall be reported to, and recorded by, the Tourist Mine Owner/Operator. The records shall be kept at the mine from the date the defects are recorded, until the defects are corrected (as per the manufacturer's recommendation). Such records shall be made available for inspection by the MSTP Supervisor or their representative.
3. Moving machine parts shall be guarded to protect persons from contacting gears, sprockets, chains, drives, heads, tails, and take-up pulleys, flywheels, coupling, shafts, fan blades, and similar moving parts that can cause injury.
4. Guards on and around machines, and equipment shall be constructed in a manner that they will withstand the vibration, shock, and wear to which they will be subjected during normal operation.

5. Guards shall be maintained securely in place, and not create a Hazard by their use, while machines or equipment are being operated, except when testing or making adjustments which cannot be performed without removal of the guard.
6. Repairs or maintenance on machinery or equipment shall be performed only after the power is off, and the machinery or equipment blocked against hazardous motion. Machinery or equipment motion or activation is permitted to the extent that adjustments or testing cannot be performed without motion or activation, provided that persons are effectively protected from hazardous motion.
7. Mobile equipment will be equipped with a manually operated horn or other audible warning device. If the equipment operator has an obstructed view to the rear, a backup alarm will be provided.
8. Shelter holes shall be:
 - a. Provided at intervals adequate to assure the safety of persons along underground haulageways where continuous clearance of at least 40 inches cannot be maintained from the farthest projection of moving equipment on at least one side of the haulageway; and
 - b. At least four feet wide, marked conspicuously, and provide a minimum 40-inch clearance from the farthest projection of moving equipment.
 - c. Shelter holes shall not be used for storage unless a 40-inch clearance is maintained.

RULE 10: PERSONAL PROTECTION

1. Adequate first-aid materials, including stretchers and blankets shall be provided at places convenient to all working areas. Water or neutralizing agents shall be available where corrosive chemicals or other harmful substances are stored, handled, or used. All first aid materials shall be present and up-to-date.
2. All persons shall wear suitable hard hats when in or around a mine or plant where falling objects may create a Hazard.
3. All persons shall wear suitable protective footwear when in or around an area of a mine or plant where a Hazard exists which could cause injury to the feet.
4. All persons shall wear suitable glasses, goggles, face shields, or other suitable protective devices when in or around an area of a mine or plant where a Hazard exists which could cause injury to unprotected eyes.
5. All persons who may be momentarily exposed to sound levels in excess of 85 dBa shall be provided with hearing protection. When using dual hearing protection, all persons shall not be exposed to sound levels in excess of 115 dBa over an eight-hour period of time. Noise control by engineering or administrative

controls must be implemented when any person may be momentarily exposed to an excess of 140 dBa (impact noise).

6. All persons who are exposed to concentrations of known airborne contaminants of excessive levels shall be protected with the appropriate respiratory protective equipment.
7. Employees required to work in isolated areas of the mine away from the tour route must have available an Approved self-rescue device, cap lamp, and gas detector.
8. The Tourist Mine Owner/Operator, with assistance from the MSTP Supervisor or their representative, shall evaluate when and where the appropriate personal protective equipment is required. The necessary equipment must be made available for Employees and Tourists.

RULE 11: COMMUNICATION

1. A communication system must be installed and maintained in a functional condition for the purpose of an effective way of communicating between surface and underground operations. Instruction shall be provided to all Tourists on proper usage of communication systems in the event of an emergency.
2. A communication system must be installed and maintained in a functional condition for the purpose of contacting the local EMS systems in the event of a mine emergency.
3. A functional communication system, complete with operating instructions, shall be maintained not more than 50 feet from the furthest point of each tour route. Each communication point or station shall be conspicuously marked with readily visible signage (2-sided) that can be seen from either direction in the tour entry/route. Petitions for modification may be submitted to the MSTP if a line of sight from the furthest point of the tour route exceeds 50 feet or other mitigating circumstances exist.

RULE 12: ELECTRICAL

1. Electrical equipment and circuits shall be provided with switches or other controls. Such switches or controls shall be of Approved design and construction and shall be properly installed.
2. Circuits shall be protected against overload by fuses or circuit breakers of the correct type and capacity.
3. Permanent splices and repairs made in power cables, including the ground conductor, where provided, shall be:

- a. Mechanically strong with electrical conductivity as near as possible to that of the original;
 - b. Insulated to a degree at least equal to that of the original, and sealed to exclude moisture; and
 - c. Provided with damage protection as near as possible to that of the original, including good bonding to the outer jacket.
4. Power wires and cables shall be Insulated adequately where they pass into or out of electrical compartments. Cables shall enter metal frames of motors, splice boxes, and electrical compartments only through proper fittings. When Insulated wire, other than cables, passes through metal frames, the holes shall be substantially bushed with Insulated bushings.
5. Telephone and low-potential signal wire shall be protected, by isolation or suitable insulation, or both, from contacting energized power conductors or any other power source.
6. All electrical equipment or components must be guarded or sealed from the general public and have a ground wire or be properly grounded.
7. Battery charging stations shall be equipped with a separate ground conductor from the charging unit to the battery unit while charging.

RULE 13: TOURIST MINE CONVEYANCE

1. Conveyances operating at Tourist Mine facilities to transport Tourists, mine Employees and members of the general public shall be subject to the State of Colorado Revised Statutes Title 9 Article 5.5 and State of Colorado Conveyance Regulations 7 C.C.R. 1101-8 and the requirements therein. Conveyances located at Tourist Mine facilities shall not operate without a valid Certificate of Operation issued by the Colorado Division of Oil and Public Safety.
2. An accurate and reliable indicator of the position of the cage, skip, bucket, or cars in the shaft shall be provided.
3. Hoist controls shall be placed or housed so that the noise from the machinery or other sources will not prevent the signals from being heard.
4. Flanges on drums shall extend radially a minimum of 4 inches or three rope diameters beyond the last wrap, whichever is the lesser.
5. Each hoist shall be equipped with a manually operated switch that will initiate emergency braking action to bring the conveyance and the counterbalance safely to rest. This switch shall be located within reach of the hoistman in case the manual controls of the hoist fail.

6. After initial rope stretch but before visible wear occurs, the rope diameter of newly installed wire rope shall be measured at least once in every third interval of active length and the measurements averaged to establish a baseline for subsequent measurements. A record of the measurements and the date shall be made by the person taking the measurements. This record shall be retained until the rope is retired from service. Records shall be made available for inspection by the MSTP director or their representative.
7. The standard code of hoisting signals recognized by the State of Colorado (34-21- 109 C.R.S.) shall be adopted at each mine.
8. A legible signal code shall be posted prominently in the hoist house within easy view of the hoistman, and at each place where signals are given or received.
9. A hoistman training and procedure plan must be developed by the Tourist Mine Owner/Operator for personnel that may operate the hoist. The Tourist Mine Owner/Operator shall ensure that any person operating a hoist is a physically Competent Person to perform the duty. The training and procedures plan along with documentation of the training must be made available for the MSTP inspector to examine.
10. When a manually operated hoist is used, a qualified hoistman shall remain within hearing of the telephone or signal device at all times while any person is underground.
11. When automatic hoisting is used, a Competent Person who can operate the hoist shall be readily available at or near the hoisting device while any person is underground.
12. All ladders, traveling systems, and escape ways must be provided and maintained. All ladders and Escapeways shall be inspected once every 30 days and records shall be maintained and available for inspection by the MSTP Supervisor or MSTP representative.

RULE 14: ILLUMINATION

1. Adequate illumination shall be provided for all Tourists in and around all walkways and areas they are required to travel, both underground and on the surface.
2. Every tour guide shall carry an operable individual battery-powered lamp while conducting an underground tour.

RULE 15: OTHER SAFETY AND HEALTH REQUIREMENTS

1. At all Tourist Mines:

- a. Workplaces, passageways, storerooms, and service rooms shall be kept clean and orderly;
 - b. The floor of every workplace shall be maintained in a clean and, so far as possible, dry condition. Where wet processes are used, drainage shall be maintained, and false floors, platforms, mats, or other dry standing places shall be provided where practicable; and
 - c. Every floor, Working Place, and passageway shall be kept free from protruding nails, splinters, holes, or loose boards, as practicable.
2. Toilet facilities:
 - a. Shall be provided at locations that are compatible with the mine operations and that are readily accessible to mine personnel.
 - b. Shall be kept clean and sanitary. Separate toilet facilities shall be provided for each sex except where toilet rooms will be occupied by no more than one person at a time and can be locked from the inside.
3. Where restricted clearance creates a Hazard to any person, the restricted clearance shall be conspicuously marked.
4. Substantial guardrails shall be provided and maintained to protect persons from endangerment where a drop-off exists of sufficient grade or depth that may cause the person or persons to fall.
5. No person shall be assigned or permitted to perform work alone in any area where hazardous conditions exist that could endanger their safety.
6. No Employee shall be under the influence of alcohol or any controlled substances while on duty, except under the direction of a licensed physician. The Tourist Mine Owner/Operator and their Employees shall ensure that no person visibly under the influence of alcohol or a controlled substance will be allowed on mine property.
7. No firearms shall be permitted in a Tourist Mine.
8. No person shall smoke or use an open flame where flammable or Combustible liquids or greases are stored. Readily visible signs prohibiting smoking and open flames shall be posted where a fire or explosion Hazard exists.
9. Any toxic materials used at the mine site shall be plainly marked or labeled so as to positively identify the nature of the Hazard and the protective action required. Safety Data Sheets must also be maintained and made available for all toxic materials.

10. In cases where, in the opinion of the MSTP Supervisor or their representative, the enforcement of any order or rule would not materially increase the safety of the Employees and would cause undue hardship on a Tourist Mine Owner/Operator, exceptions may be made at the discretion of the MSTP Supervisor or their representative. To be effective, such exceptions shall be stated in writing. A reply regarding the approval or denial of the request, with or without conditions, will be mailed to the requesting party within 30 days of receipt of the written request.
11. These rules are not intended to and do not limit or affect the duty or obligation of the Tourist Mine Owner/Operator to correct any unsafe condition or procedure existing at a Tourist Mine.

RULE 16: ENFORCEMENT PROVISIONS

1. When an authorized representative of the Division conducts any inspection and determines that any condition or practice subject to the Act, or any violation of the Act, these Rules, or any approval exists at a Tourist Mine operation and that such condition, practice, or violation creates an imminent danger to the health or safety of the public or is causing significant harm, then such authorized representative shall immediately order a cease and desist of the Tourist Mine operations of the portion thereof relevant to the condition, practice or violation.
 - a. When the authorized representative determines that a cease and desist ordered pursuant to (1) above will not completely abate the imminent danger to the health or safety of the public or abate the significant harm or reasonable expectation thereof in the most expeditious manner possible, the MSTP Supervisor shall, in addition to the cease and desist order, impose affirmative obligations on the Tourist Mine Owner/Operator requiring abatement of the danger or significant harm. The cease and desist order shall fix a reasonable time, within which abatement shall be accomplished.
2. When an authorized representative of the Division conducts any inspection and determines that any condition or practice subject to the Act, or any violation of the Act, these Rules, or any approval exists at a Tourist Mine operation but that such condition, practice, or violation does not create an imminent danger to the health or safety of the public or significant harm which a cease and desist order must be issued under (1) above, then such authorized representative shall issue a notice of violation to the Tourist Mine Owner/Operator.
 - a. Notices of violation shall fix a reasonable time, not to exceed 90 days, within which abatement shall be accomplished. An extension of the abatement period may be allowed in writing by the MSTP Supervisor, upon written request and for good cause for such an extension, except upon showing by the person who is issued a notice of violation pursuant to

- (1) above that it is not feasible to abate the violation within 90 calendar days due to one or more circumstances.
3. If the person who is issued a notice of violation pursuant to (2) above fails to abate the violation within the abatement period as originally fixed or as subsequently extended, or fails to accomplish an interim step designed by the MSTP within the abatement period, for good cause shown, the MSTP Supervisor or authorized representative of the Division shall immediately order a cease and desist of the Tourist Mine operations or of the portion thereof relevant to the violation.
 4. Each notice of violation or cease and desist order issued shall be identified on a MSTP inspection report and shall be signed by the authorized representative of the Division, and shall set forth with reasonable specificity the following:
 - a. The nature of the violation, including a reference to the provisions of the Act, Rules, or approval allegedly violated;
 - b. A description of the steps necessary to abate the violation in the most expeditious manner physically possible;
 - c. The period of time fixed for abatement; and
 - d. A reasonable description of the portion of the Tourist Mine operation to which the notice of violation or cease and desist order applies.
 - e. The notice of violation or cease and desist order shall also inform such person that they have the right to review the notice of violation or cease and desist order by the Administrator of the Division.
 5. Cease and desist orders shall remain in effect until:
 - a. It is determined by an authorized representative of the Division that the condition, practice, or violation has been abated; or
 - b. The cease and desist order is modified, vacated, or terminated in writing by an authorized representative of the Division.
 6. In the event the Tourist Mine Owner/Operator fails to comply with a cease and desist order, the MSTP may request the Attorney General to bring suit for a temporary restraining order, a preliminary injunction, or a permanent injunction to prevent any further or continued violation of such order.
 7. If the Tourist Mine Owner/Operator has been issued a cease and desist order, the Tourist Mine Owner/Operator may, following a request by the Tourist Mine Owner/Operator and approval an authorized representative of the Division, continue operating the Tourist Mine only for the purpose of bringing the Tourist Mine into compliance with the provisions of these Rules. Once the Tourist Mine is

in complete compliance to the satisfaction of the MSTP, the MSTP shall consider vacating the cease and desist order.

8. The MSTP shall utilize the applicable provisions of Section 105 of the Colorado Administrative Procedures Act 24-4-105, C.R.S., when conducting hearings regarding violations and appeals of violations from a Tourist Mine Owner/Operator.
 - a. Any Tourist Mine Owner/Operator may appeal an order from the MSTP to the Director of the Division of Reclamation, Mining and Safety (DRMS). Any such appeal must be made in writing to the DRMS Director within thirty (30) days of the order. Any appeal shall be heard by the DRMS Director not less than thirty (30) days from the date the appeal is filed. Failure to appeal to the DRMS Director in writing within thirty (30) days of the order shall constitute a waiver of any appeal rights a Tourist Mine Owner/Operator may have had. A Tourist Mine Owner/Operator may request an expedited hearing if he/she has been issued a cease and desist. Failure of a Tourist Mine Owner/Operator to appeal within thirty (30) days of an order by the MSTP shall render the order final. Agency action may be appealed by a Tourist Mine Owner/Operator and subject to judicial review in accordance with the procedures of Section 106 of the Colorado Administrative Procedures Act, 24- 4-106 C.R.S.
 - b. Any person affected or aggrieved by an order of the MSTP shall be admitted as a party to the hearing, provided such person files a written request with the DRMS Director, setting forth a brief and plain statement of facts which entitle that person to be admitted and the matters which that person claims should be decided. Such a written request must be submitted within thirty (30) days of the MSTP order. The Tourist Mine Owner/Operator and the MSTP shall be automatically granted status to any appeal.

RULE 17: CHANGE OF NAME - LEGAL EFFECT

1. Any statute enacted prior to or on August 9, 2006 changing the name of the Division of Minerals and Geology to the Division of Reclamation, Mining and Safety, shall not impair the legal status or effect of any and all permits, permit obligations, financial warranties, performance warranties, contracts, property rights and/or any other obligations or legal relationships that were entered into between any entity or individual and the Division of Minerals and Geology prior to the name change. All such obligations will remain legally binding and shall not be impaired by any such name change. Any statute enacted after August 9, 2006 changing the name of the Division of Reclamation, Mining and Safety to any other name, shall not impair the legal status or effect of any and all permits, permit obligations, financial warranties, performance warranties, contracts, property rights and/or any other obligations or legal relationships that were entered into between an entity or individual and the Division of Reclamation, Mining and Safety prior to such name change. All such obligations will remain legally binding and shall not be impaired by any such name change.

Editor's Notes

History

Entire rule eff. 04/14/2026.